

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 6, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINES 1-2	24CV451283	Micropoint Bioscience, Inc. et al vs Nan Zhang	Motion to Compel (Line # 1) and Motion to Compel (Line #2); OFF CALENDAR. On December 10, 2025, defendant Nan Zhang filed a motion to compel the plaintiff to respond to Form Interrogates, Special Interrogatories, Request for Production of Documents, and sanctions. The motion was accompanied by a proof of service indicating mail and electronic mail service on plaintiff's counsel. The motions are unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Since the filing of these motions, Plaintiff's counsel withdrew as the attorney of record indicating loss of communication and the corporations being abroad. The Plaintiff has failed to appear on June 25, 2026, and the matter was set for an order to show cause dismissal of the case. On July 23, 2026, no appearance was made on behalf of the plaintiff and the case was dismissed. Thus, the motions here are rendered moot.
LINE 3	24CV452437	Michael Douglas vs Ford Motor Company et al	Motion for Summary Adjudication Scroll down to Line 3 for Tentative Ruling.
LINE 4	25CV463796	Discovery Bank vs Andrew Little	Motion to Vacate Judgment and Enter Dismissal Scroll down to Line 4 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

LINE 5	25CV465371	American Express National Bank vs Maryam Rafipour	Motion to Set Aside Default Judgment Scroll down to Line 5 for Tentative Ruling.
LINE 6	26CV484388	Rosette Simon et al vs EAH Housing Inc. et al	Demurrer Scroll down to Line 6 for Tentative Ruling.
LINE 7	24CV449313	Keith Lyle vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 7 for Tentative Ruling.

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9:01 A.M.			
LINE 1	23CV414336	Marissa Dominguez et al vs Marriot Hotel et al	Hearing on Minor's Compromise Parties to appear.

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